



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2179: air ambulance services

WILLOUGHBY FLOOR AMENDMENT

1. Further clarifies statute to distinguish ground ambulance and air ambulance regulations.
2. Makes technical and conforming changes.

WILLOUGHBY FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2179
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 12-516, Arizona Revised Statutes, is amended to
3 read:

4 12-516. Emergency declaration for a public health pandemic;
5 health professionals; health care institutions;
6 immunity; burden of proof; presumption;
7 applicability; definitions

8 A. If the governor declares a state of emergency for a public
9 health pandemic pursuant to title 26, chapter 2, a health professional or
10 health care institution that acts in good faith is not liable for damages
11 in any civil action for an injury or death that is alleged to be caused by
12 the health professional's or health care institution's action or omission
13 while providing health care services in support of this state's response
14 to the state of emergency declared by the governor unless it is proven by
15 clear and convincing evidence that the health professional or health care
16 institution failed to act or acted and the failure to act or action was
17 due to that health professional's or health care institution's wilful
18 misconduct or gross negligence.

19 B. Subsection A of this section applies to any action or omission
20 that is alleged to have occurred during a person's screening, assessment,
21 diagnosis or treatment and that is related to the public health pandemic
22 that is the subject of the state of emergency or any action or omission
23 that occurs in the course of providing a person with health care services
24 and that is unrelated to the public health pandemic that is the subject of
25 the state of emergency if the health professional's or health care
26 institution's action or omission was in good faith support of this state's
27 response to the state of emergency, including any of the following:

1 1. Delaying or canceling a procedure that the health professional
2 determined in good faith was a nonurgent or elective dental, medical or
3 surgical procedure.

4 2. Providing nursing care or procedures.

5 3. Altering a person's diagnosis or treatment in response to an
6 order, directive or guideline that is issued by the federal government,
7 this state or a local government.

8 4. An act or omission undertaken by a health professional or health
9 care institution because of a lack of staffing, facilities, equipment,
10 supplies or other resources that ~~are~~ IS attributable to the state of
11 emergency and that ~~render~~ RENDERS the health professional or health care
12 institution unable to provide the level or manner of care to a person that
13 otherwise would have been required in the absence of the state of
14 emergency.

15 C. A health professional or health care institution is presumed to
16 have acted in good faith if the health professional or health care
17 institution relied on and reasonably attempted to comply with applicable
18 published guidance relating to the public health pandemic that was issued
19 by a federal or state agency. This subsection does not prohibit a party
20 from introducing any other evidence that proves the health professional or
21 health care institution acted in good faith.

22 D. In the case of a claim against a nursing care institution or
23 residential care institution, ~~where~~ IN WHICH the care in question did not
24 directly relate to the public health pandemic, the burden is on the
25 facility to prove that the act or omission was a direct result of having
26 to provide care to patients needing treatment for the pandemic or due to
27 limitations in equipment, supplies or staff caused by the pandemic.

28 E. This section applies to all claims that are filed before or
29 after September 29, 2021 for an act or omission by a person that occurred
30 on or after March 11, 2020 and that relates to a public health pandemic
31 that is the subject of the state of emergency declared by the governor.

32 F. This section does not apply to any claim that is subject to
33 title 23, chapter 6.

34 G. For the purposes of this section:

35 1. "Health care institution" has the same meaning prescribed in
36 section 36-401 and includes an ambulance service as defined in section
37 36-2201.

38 2. "Health professional":

39 (a) Has the same meaning prescribed in section 32-3201. ~~and~~

40 (b) Includes an AIR AMBULANCE ATTENDANT AND ambulance attendant as
41 defined in section 36-2201.

1 Sec. 2. Section 13-2929, Arizona Revised Statutes, is amended to
2 read:

3 13-2929. Unlawful transporting, moving, concealing, harboring
4 or shielding of unlawful aliens; vehicle
5 impoundment; exception; classification

6 A. It is unlawful for a person who is in violation of a criminal
7 offense to:

8 1. Transport or move or attempt to transport or move an alien in
9 this state, in furtherance of the illegal presence of the alien in the
10 United States, in a means of transportation if the person knows or
11 recklessly disregards the fact that the alien has come to, has entered or
12 remains in the United States in violation of law.

13 2. Conceal, harbor or shield or attempt to conceal, harbor or
14 shield an alien from detection in any place in this state, including any
15 building or any means of transportation, if the person knows or recklessly
16 disregards the fact that the alien has come to, has entered or remains in
17 the United States in violation of law.

18 3. Encourage or induce an alien to come to or reside in this state
19 if the person knows or recklessly disregards the fact that such coming to,
20 entering or residing in this state is or will be in violation of law.

21 B. A means of transportation that is used in the commission of a
22 violation of this section is subject to mandatory vehicle immobilization
23 or impoundment pursuant to section 28-3511.

24 C. A law enforcement official or agency of this state or a county,
25 city, town or other political subdivision of this state may not consider
26 race, color or national origin in the enforcement of this section except
27 to the extent permitted by the United States CONSTITUTION or Arizona
28 Constitution.

29 D. In the enforcement of this section, an alien's immigration
30 status may be determined by:

31 1. A law enforcement officer who is authorized by the federal
32 government to verify or ascertain an alien's immigration status.

33 2. The United States immigration and customs enforcement or the
34 United States customs and border protection pursuant to 8 United States
35 Code section 1373(c).

36 E. This section does not apply to a child safety worker acting in
37 the worker's official capacity or a person who is acting in the capacity
38 of a first responder, an ambulance attendant, AN AIR AMBULANCE ATTENDANT
39 or an emergency medical technician and who is transporting or moving an
40 alien in this state pursuant to title 36, chapter 21.1.

41 F. A person who violates this section is guilty of a class 1
42 misdemeanor and is subject to a fine of at least ~~one thousand dollars~~
43 \$1,000, except that a violation of this section that involves ten or more
44 illegal aliens is a class 6 felony and the person is subject to a fine of
45 at least ~~one thousand dollars~~ \$1,000 for each alien who is involved.

1 Sec. 3. Section 32-1471, Arizona Revised Statutes, is amended to
2 read:

3 32-1471. Health care providers: other persons: emergency aid:
4 nonliability

5 Any health care provider WHO IS licensed or certified to practice as
6 such in this state or elsewhere, ~~or~~ a licensed ambulance attendant, AIR
7 AMBULANCE ATTENDANT, driver or AMBULANCE pilot as defined in section
8 41-1831, ~~or~~ or any other person who renders emergency care at a public
9 gathering or at the scene of an emergency occurrence gratuitously and in
10 good faith ~~shall~~ IS not ~~be~~ liable for any civil or other damages as the
11 result of any act or omission by ~~such~~ THE person rendering the emergency
12 care, or as the result of any act or failure to act to provide or arrange
13 for further medical treatment or care for the injured persons, unless ~~such~~
14 THE person, while rendering such emergency care, is guilty of gross
15 negligence.

16 Sec. 4. Section 36-661, Arizona Revised Statutes, is amended to
17 read:

18 36-661. Definitions

19 In this article, unless the context otherwise requires:

20 1. "Acquired immune deficiency syndrome" has the same meaning as
21 defined by the centers for disease control of the United States public
22 health service.

23 2. "Capacity to consent" means a person's ability, determined
24 without regard to the person's age, to understand and appreciate the
25 nature and consequences of a proposed health care service, treatment or
26 procedure and to make an informed decision concerning that service,
27 treatment or procedure.

28 3. "Child" means an unemancipated person WHO IS under eighteen
29 years of age.

30 4. "Communicable disease" means a contagious, epidemic or
31 infectious disease THAT IS required to be reported to the local board of
32 health or the department pursuant to chapter 1 of this title and this
33 chapter.

34 5. "Communicable disease related information" means information
35 regarding a communicable disease THAT IS in the possession of a person who
36 provides health services or who obtains the information pursuant to the
37 release of communicable disease related information.

38 6. "Contact" means a spouse or sex partner of a protected person, a
39 person who has shared hypodermic needles or syringes with a protected
40 person or a person WHO IS otherwise exposed to a protected person with a
41 communicable disease in a manner that poses an epidemiologically
42 significant risk of transmission of that disease.

43 7. "Department" means the department ~~of health services~~.

44 8. "Director" means the director of the department of health
45 services.

- 1 9. "First responder" means a law enforcement officer, a
2 firefighter, ~~AN AIR AMBULANCE ATTENDANT AS DEFINED IN SECTION 36-2201~~ or
3 an ambulance attendant as defined in section 36-2201.
- 4 10. "Good Samaritan" means a person who renders emergency care or
5 assistance in good faith and without compensation at the scene of any
6 accident, fire or other life-threatening emergency and who believes that a
7 significant exposure risk occurred while the person rendered care or
8 assistance.
- 9 11. "Health care decision maker" has the same meaning prescribed in
10 section 12-2801.
- 11 12. "Health care provider" means a physician, nurse or other person
12 involved in providing health services.
- 13 13. "Health facility" means a health care institution as defined in
14 section 36-401, a blood bank, blood center, milk bank, sperm bank, organ
15 or tissue bank or clinical laboratory or a health care services
16 organization holding a certificate of authority pursuant to section
17 20-1054.
- 18 14. "Health service" means public or private care, treatment,
19 clinical laboratory tests, counseling or educational service for adults or
20 children and acute, chronic, custodial, residential, outpatient, home or
21 other health care or activities related to ~~the detection~~ DETECTING,
22 reporting, ~~prevention~~ PREVENTING and ~~control of~~ CONTROLLING communicable
23 or preventable diseases.
- 24 15. "HIV" means the human immunodeficiency virus.
- 25 16. "HIV infection" means infection with the human immunodeficiency
26 virus or a related virus identified as a probable causative agent of
27 acquired immune deficiency syndrome.
- 28 17. "HIV-related illness" means an illness that may result from or
29 be associated with HIV infection.
- 30 18. "HIV-related information" means information concerning whether a
31 person has had an HIV-related test or has ~~AN~~ HIV infection, ~~AN~~ HIV-related
32 illness or acquired immune deficiency syndrome and includes information
33 that identifies or reasonably ~~permits~~ ~~allows~~ identification of that person
34 or the person's contacts.
- 35 19. "HIV-related test" means a laboratory test or series of tests
36 for the virus, components of the virus or antibodies to the virus thought
37 to indicate the presence of HIV infection.
- 38 20. "Occupational significant exposure risk" means a significant
39 exposure risk that occurs in the performance of a health care provider's
40 professional duties or a first responder's official duties.
- 41 21. "Protected person" means a person who takes an HIV-related test
42 or who has been diagnosed as having ~~AN~~ HIV infection, acquired immune
43 deficiency syndrome, ~~AN~~ HIV-related illness or another communicable
44 disease.

1 22. "Significant exposure risk" means contact with another person in
2 a manner that, if the other person has a communicable disease, poses an
3 epidemiologically significant risk of transmission of that disease as
4 determined by the department.

5 Sec. 5. Section 36-2201, Arizona Revised Statutes, is amended to
6 read:

7 36-2201. Definitions

8 In this chapter, unless the context otherwise requires:

9 1. "Administrative medical direction" means supervision of
10 emergency medical care technicians by a base hospital medical director,
11 administrative medical director or basic life support medical director.
12 For the purposes of this paragraph, "administrative medical director"
13 means a physician ~~who is licensed pursuant to title 32, chapter 13 or 17~~
14 ~~and~~ who provides direction within the emergency medical services and
15 trauma system.

16 2. "Advanced emergency medical technician" means a person who has
17 been trained in an advanced emergency medical technician program certified
18 by the director or in an equivalent training program and who is certified
19 by the director to render services pursuant to section 36-2205.

20 3. "Advanced life support" means the level of assessment and care
21 identified in the scope of practice approved by the director for the
22 advanced emergency medical technician, emergency medical technician I-99
23 and paramedic.

24 4. "Advanced life support base hospital" means a health care
25 institution that offers general medical and surgical services, that is
26 certified by the director as an advanced life support base hospital and
27 that is affiliated by written agreement with a licensed ambulance service,
28 [AIR AMBULANCE SERVICE.] municipal rescue service, fire department, fire
29 district or health services district for medical direction, evaluation and
30 control of emergency medical care technicians.

31 5. "AIR AMBULANCE" MEANS ANY PUBLICLY OR PRIVATELY OWNED AIRCRAFT
32 THAT IS CERTIFICATED UNDER 14 CODE OF FEDERAL REGULATIONS PART 135, THAT
33 CONTAINS A STRETCHER AND NECESSARY MEDICAL EQUIPMENT AND SUPPLIES PURSUANT
34 TO SECTION 36-2202 AND THAT IS SPECIFICALLY DESIGNED AND CONSTRUCTED OR
35 MODIFIED AND EQUIPPED TO BE USED, MAINTAINED OR OPERATED PRIMARILY TO
36 TRANSPORT INDIVIDUALS WHO ARE SICK, INJURED OR WOUNDED OR WHO REQUIRE
37 MEDICAL MONITORING OR AID.

38 6. "AIR AMBULANCE ATTENDANT" MEANS ANY OF THE FOLLOWING:

39 (a) A PARAMEDIC WHOSE PRIMARY RESPONSIBILITY IS CARING FOR PATIENTS
40 IN AN AIR AMBULANCE AND WHO MEETS THE STANDARDS AND CRITERIA ADOPTED
41 PURSUANT TO SECTION 36-2204.

42 (b) A RESPIRATORY THERAPIST WHO IS LICENSED PURSUANT TO TITLE 32,
43 CHAPTER 35.

44 (c) A PHYSICIAN.

45 (d) A PROFESSIONAL NURSE WHO IS LICENSED PURSUANT TO TITLE 32,
46 CHAPTER 15 AND WHOSE PRIMARY RESPONSIBILITY IS CARING FOR PATIENTS IN AN
47 AIR AMBULANCE.

1 (e) A NURSE PRACTITIONER WHO IS LICENSED PURSUANT TO TITLE 32,
2 CHAPTER 15.

3 7. "AIR AMBULANCE SERVICE" MEANS A PERSON OR ORGANIZATION THAT OWNS
4 AND OPERATES ONE OR MORE AIR AMBULANCES OR THAT LEASES FROM AN AIR CARRIER
5 THE USE OF ONE OR MORE AIR AMBULANCES THAT ARE CERTIFICATED UNDER 14 CODE
6 OF FEDERAL REGULATIONS PART 135 FOR THE PURPOSE OF PROVIDING EMERGENCY
7 MEDICAL SERVICES IN AIR AMBULANCES.

8 ~~5-~~ 8. "Ambulance":

9 (a) Means any publicly or privately owned surface, ~~OR water or air~~
10 vehicle, ~~including a helicopter,~~ that contains a stretcher and necessary
11 medical equipment and supplies pursuant to section 36-2202 and that is
12 ~~especially~~ SPECIFICALLY designed and constructed or modified and equipped
13 to be used, maintained or operated primarily to transport individuals who
14 are sick, injured or wounded or who require medical monitoring or aid.

15 (b) Does not include a surface vehicle that is owned and operated
16 by a private sole proprietor, partnership, private corporation or
17 municipal corporation for the emergency transportation and in-transit care
18 of its employees or a vehicle that is operated to accommodate an
19 incapacitated person or person with a disability who does not require
20 medical monitoring, care or treatment during transport and that is not
21 advertised as having medical equipment and supplies or ambulance
22 attendants.

23 ~~6-~~ 9. "Ambulance attendant" means any of the following:

24 (a) An emergency medical technician, an advanced emergency medical
25 technician, an emergency medical technician I-99 or a paramedic whose
26 primary responsibility is the care of patients in an ambulance and who
27 meets the standards and criteria adopted pursuant to section 36-2204.

28 (b) An emergency medical responder who is employed by an ambulance
29 service operating under section 36-2202 and whose primary responsibility
30 is driving an ambulance.

31 (c) A physician ~~who is licensed pursuant to title 32, chapter 13~~
32 ~~or 17.~~

33 (d) A professional nurse who is licensed pursuant to title 32,
34 chapter 15 and who meets the ARIZONA state board of nursing criteria to
35 care for patients in the prehospital care system.

36 (e) A professional nurse who is licensed pursuant to title 32,
37 chapter 15 and whose primary responsibility is the care of patients in an
38 ambulance during an interfacility transport.

39 ~~7-~~ 10. "Ambulance service" means a person who owns and operates
40 one or more ambulances.

41 ~~8-~~ 11. "Basic life support" means the level of assessment and care
42 identified in the scope of practice approved by the director for the
43 emergency medical responder and emergency medical technician.

44 ~~9-~~ 12. "Bureau" means the bureau of emergency medical services and
45 trauma system in the department.

1 ~~10.~~ 13. "Centralized medical direction communications center"
2 means a facility that is housed within a hospital, medical center or
3 trauma center or a freestanding communication center that meets the
4 following criteria:
5 (a) Has the ability to communicate with ambulance services and
6 emergency medical services providers rendering patient care outside of the
7 hospital setting via radio and telephone.
8 (b) Is staffed twenty-four hours a day, seven days a week, by at
9 least a physician ~~licensed pursuant to title 32, chapter 13 or 17.~~
10 ~~11.~~ 14. "Certificate of necessity" means a certificate that is
11 issued to an ambulance service by the department and that describes the
12 following:
13 (a) The service area.
14 (b) The level of service.
15 (c) The type of service.
16 (d) The hours of operation.
17 (e) The effective date.
18 (f) The expiration date.
19 (g) The legal name and address of the ambulance service.
20 (h) The any limiting or special provisions the director prescribes.
21 ~~12.~~ 15. "Council" means the emergency medical services council.
22 ~~13.~~ 16. "Department" means the department of health services.
23 ~~14.~~ 17. "Director" means the director of the department ~~of health~~
24 ~~services.~~
25 ~~15.~~ 18. "Emergency medical care technician" means an individual
26 who has been certified by the department as an emergency medical
27 technician, an advanced emergency medical technician, an emergency medical
28 technician I-99 or a paramedic.
29 ~~16.~~ 19. "Emergency medical responder" as an ambulance attendant
30 whose primary responsibility is driving an ambulance, ~~OR AN AIR AMBULANCE~~
31 ~~ATTENDANT~~, means a person who has successfully completed training in an
32 emergency medical responder program that is certified by the director or
33 is approved by the emergency medical services provider's administrative
34 medical director on file with the department or in an equivalent training
35 program.
36 ~~17.~~ 20. "Emergency medical responder program" means a program that
37 has been submitted for review by the department and includes at least the
38 following:
39 (a) Emergency vehicle driver training.
40 (b) Cardiopulmonary resuscitation certification.
41 (c) Automated external defibrillator training.
42 (d) Training in the use of noninvasive diagnostic devices,
43 including blood glucose monitors and pulse oximeters.
44 (e) Training on obtaining a patient's vital signs, including blood
45 pressure, pulse and respiratory rate.
46 ~~18.~~ 21. "Emergency medical services" means those services required
47 following an accident or an emergency medical situation:

1 (a) For on-site emergency medical care.
2 (b) To transport the sick or injured by a licensed ~~ground~~ AMBULANCE
3 or air ambulance.
4 (c) In using emergency communications media.
5 (d) In using emergency receiving facilities.
6 (e) In administering initial care and preliminary treatment
7 procedures by emergency medical care technicians.
8 ~~19.~~ 22. "Emergency medical services provider" means any
9 governmental entity, quasi-governmental entity or corporation, whether
10 public or private, that renders emergency medical services in this state.
11 ~~20.~~ 23. "Emergency medical technician" means a person who has been
12 trained in an emergency medical technician program certified by the
13 director or in an equivalent training program and who is certified by the
14 director as qualified to render services pursuant to section 36-2205.
15 ~~21.~~ 24. "Emergency receiving facility" means a licensed health
16 care institution that offers emergency medical services, is staffed
17 twenty-four hours a day and has a physician on call.
18 ~~22.~~ 25. "Epinephrine delivery system" means a single-use device or
19 product that contains a premeasured dose of epinephrine and that is
20 approved by the United States food and drug administration to prevent or
21 treat a life-threatening allergic reaction.
22 ~~23.~~ 26. "Fit and proper" means that the director determines that
23 an applicant for a certificate of necessity or a certificate holder has
24 the expertise, integrity, fiscal competence and resources to provide
25 ambulance service in the service area.
26 ~~24.~~ 27. "Medical record" means any patient record, including
27 clinical records, prehospital care records, medical reports, laboratory
28 reports and statements, any file, film, record or report or oral
29 statements relating to diagnostic findings, treatment or outcome of
30 patients, whether written, electronic or recorded, and any information
31 from which a patient or the patient's family might be identified.
32 ~~25.~~ 28. "National certification organization" means a national
33 organization that tests and certifies the ability of an emergency medical
34 care technician and whose tests are based on national education standards.
35 ~~26.~~ 29. "National education standards" means the emergency medical
36 services education standards of the United States department of
37 transportation or other similar emergency medical services education
38 standards developed by that department or its successor agency.
39 ~~27.~~ 30. "Paramedic" means a person who has been trained in a
40 paramedic program certified by the director or in an equivalent training
41 program and who is certified by the director to render services pursuant
42 to section 36-2205.
43 ~~28.~~ 31. "Physician" means any person WHO IS licensed pursuant to
44 title 32, chapter 13 or 17.

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1      29. 32. "Police dog":
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2 (a) Means a specially trained dog that is owned or used by a law
3 enforcement department or agency of this state or any political
4 subdivision of this state and that is used in the course of the
5 department's or agency's official work.

6 (b) Includes a search and rescue dog, service dog, accelerant
7 detection canine or other dog that is in use by the law enforcement
8 department or agency for official duties.

9 ~~30-~~ 33. "Stretcher van" means a vehicle that contains a stretcher
10 and that is operated to accommodate an incapacitated person or person with
11 a disability who does not require medical monitoring, aid, care or
12 treatment during transport.

13 ~~31.~~ 34. "Suboperation station" means a physical facility or
14 location at which an ambulance service conducts operations for the
15 dispatch of ambulances and personnel and that may be staffed twenty-four
16 hours a day or less as determined by system use.

17 ~~32.~~ 35. "Trauma center" means any acute care hospital that
18 provides in-house twenty-four-hour daily dedicated trauma surgical
19 services that is designated pursuant to section 36-2225.

~~33.~~ 36. "Trauma registry" means data collected by the department on trauma patients and on the incidence, causes, severity, outcomes and operation of a trauma system and its components.

23 ~~34.~~ 37. "Trauma system" means an integrated and organized
24 arrangement of health care resources having the specific capability to
25 perform triage, transport and provide care.

26 ~~35-~~ 38. "Validated testing procedure" means a testing procedure
27 that includes practical skills, or attests practical skills proficiency on
28 a form developed by the department by the educational training program,
29 identified pursuant to section 36-2204, paragraph 2, that is certified as
30 valid by an organization capable of determining testing procedure and
31 testing content validity and that is recommended by the medical direction
32 commission and the emergency medical services council before the
33 director's approval.

34 ~~36.~~ 39. "Wheelchair van" means a vehicle that contains or that is
35 designed and constructed or modified to contain a wheelchair and that is
36 operated to accommodate an incapacitated person or person with a
37 disability who does not require medical monitoring, aid, care or treatment
38 during transport.

39 Sec. 6. Section 36-2202, Arizona Revised Statutes, is amended to
40 read:

41 36-2202. Duties of the director; qualifications of medical
42 director

43 A. The director shall:

44 1. Appoint a medical director of the emergency medical services and
45 trauma system.

46 2. Adopt standards and criteria for the denial or granting of
47 certification and recertification of emergency medical care technicians.

1 These standards shall allow the department to certify qualified emergency
2 medical care technicians who have completed statewide standardized
3 training required under section 36-2204, paragraph 1 and a standardized
4 certification test required under section 36-2204, paragraph 2, who hold
5 valid certification with a national certification organization or who have
6 completed training and testing by the United States armed forces at a
7 level comparable to the national standards for emergency medical care
8 technicians. Before the director may consider approving a statewide
9 standardized training or a standardized certification test, or both, each
10 of these must first be recommended by the medical direction commission and
11 the emergency medical services council to ensure that the standardized
12 training content is consistent with national education standards and that
13 the standardized certification test examines comparable material to that
14 examined in the tests of a national certification organization.

15 3. Adopt standards and criteria that pertain to the quality of
16 emergency care pursuant to section 36-2204.

17 4. Adopt rules necessary to carry out this chapter. Each rule
18 shall identify all sections and subsections of this chapter under which
19 the rule was formulated.

20 5. Adopt reasonable medical equipment, supply, staffing and safety
21 standards, criteria and procedures to issue a certificate of registration
22 to operate an ambulance OR AIR AMBULANCE.

23 6. Maintain a state system for recertifying emergency medical care
24 technicians, except as otherwise provided by section 36-2202.01, that is
25 independent from any national certification organization recertification
26 process. This system shall allow emergency medical care technicians to
27 choose to be recertified under the state or the national certification
28 organization recertification system subject to subsection H of this
29 section.

30 B. Emergency medical technicians who choose the state
31 recertification process shall recertify in one of the following ways:

32 1. Successfully completing an emergency medical technician
33 refresher course approved by the department.

34 2. Successfully completing an emergency medical technician
35 challenge course approved by the department.

36 3. For emergency medical care technicians who are currently
37 certified at the emergency medical technician level by the department,
38 attesting on a form provided by the department that the applicant holds a
39 valid and current cardiopulmonary resuscitation certification, has and
40 will maintain documented proof of a minimum of twenty-four hours of
41 continuing medical education within the last two years consistent with
42 department rules and has functioned in the capacity of an emergency
43 medical technician for at least two hundred forty hours during the last
44 two years.

1 C. After consultation with the emergency medical services council,
2 the director may authorize pilot programs designed to improve the safety
3 and efficiency of ambulance ~~[AND AIR AMBULANCE]~~ inspections for
4 governmental or quasi-governmental entities that provide emergency medical
5 services in this state.

6 D. The rules, standards and criteria adopted by the director
7 pursuant to subsection A, paragraphs 2, 3, 4 and 5 of this section shall
8 be adopted in accordance with title 41, chapter 6, except that the
9 director may adopt on an emergency basis pursuant to section 41-1026 rules
10 relating to the regulation of ambulance services ~~[AND AIR AMBULANCE~~
11 ~~SERVICES]~~ in this state necessary to protect the public peace, health and
12 safety in advance of adopting rules, standards and criteria as otherwise
13 provided by this subsection.

14 E. The director may waive the requirement for compliance with a
15 protocol adopted pursuant to section 36-2205 if the director determines
16 that the techniques, drug formularies or training makes the protocol
17 inconsistent with contemporary medical practices.

18 F. The director may suspend a protocol adopted pursuant to
19 section 36-2205 if the director does all of the following:

20 1. Determines that the rule is not in the public's best interest.
21 2. Initiates procedures pursuant to title 41, chapter 6 to repeal
22 the rule.

23 3. Notifies all interested parties in writing of the director's
24 action and the reasons for that action. Parties interested in receiving
25 notification shall submit a written request to the director.

26 G. To be eligible for appointment as the medical director of the
27 emergency medical services and trauma system, the person shall be
28 qualified in emergency medicine and shall be licensed as a physician in
29 one of the states of the United States.

30 H. Applicants for certification shall apply to the director for
31 certification. Emergency medical care technicians shall apply for
32 recertification to the director every two years. The director may extend
33 the expiration date of an emergency medical care technician's certificate
34 for thirty days. The department shall establish a fee for this extension
35 by rule. Emergency medical care technicians shall pass an examination
36 administered by the department as a condition for recertification only if
37 required to do so by the advanced life support base hospital's medical
38 director or the emergency medical care technician's medical director.

39 I. The medical director of the emergency medical services and
40 trauma system is exempt from title 41, chapter 4, articles 5 and 6 and is
41 entitled to receive compensation pursuant to section 38-611, subsection A.

42 J. The standards, criteria and procedures adopted by the director
43 pursuant to subsection A, paragraph 5 of this section shall require that
44 ambulance services ~~AND AIR AMBULANCES SERVICES:~~

45 1. Providing interfacility transportation, ~~BY AN AMBULANCE,~~ in any
46 certificate of necessity area of this state have one ambulance attendant
47 as defined in section 36-2201, paragraph ~~6~~ 9, subdivision (a), (c), (d)

1 or (e) and one ambulance attendant as defined in section 36-2201, paragraph ~~6~~ 9, subdivision (a), (b), (c), (d), or (e) staffing an ambulance while transporting a patient. If an ambulance attendant as defined in section 36-2201, paragraph ~~6~~ 9, subdivision (b) is staffing the ambulance pursuant to this paragraph, that ambulance attendant may exclusively drive the ambulance.

2. PROVIDING INTERFACILITY TRANSPORTATION, BY AN AIR AMBULANCE, HAVE ONE AIR AMBULANCE ATTENDANT AS DEFINED IN SECTION 36-2201, PARAGRAPH 6, SUBDIVISION (c), (d) OR (e) AND ONE AIR AMBULANCE ATTENDANT AS DEFINED IN SECTION 36-2201, PARAGRAPH 6, SUBDIVISION (a), (b) OR (d) STAFFING AN AIR AMBULANCE WHILE TRANSPORTING A PATIENT.

~~2.~~ 3. Serving a rural or wilderness certificate of necessity area with a population of less than ten thousand persons have at least one ambulance attendant as defined in section 36-2201, paragraph ~~6~~ 9, subdivision (a), (c), (d) or (e) and one ambulance attendant as defined in section 36-2201, paragraph ~~6~~ 9, subdivision (a) or (b) staffing an ambulance while transporting a patient.

~~3.~~ 4. Serving a population of ten thousand persons or more have at least one ambulance attendant as defined in section 36-2201, paragraph ~~6~~ 9, subdivision (a) and one ambulance attendant as defined in section 36-2201, paragraph ~~6~~ 9, subdivision (a), (c), (d) or (e) staffing an ambulance while transporting a patient.

K. If the department determines there is not a qualified administrative medical director, the department shall ensure the provision of administrative medical direction for an emergency medical technician if the emergency medical technician meets all of the following criteria:

1. Is employed by a nonprofit or governmental provider employing less than twelve full-time emergency medical technicians.

2. Stipulates to the inability to secure a physician who is willing to provide administrative medical direction.

3. Stipulates that the provider agency does not provide administrative medical direction for its employees.

<<Sec. 7. Section 36-2203, Arizona Revised Statutes, is amended to read:

36-2203. Emergency medical services council; membership; delayed repeal

A. The emergency medical services council is established. The medical director of the emergency medical services and trauma system shall chair the council. The council is composed of the director of the department of public safety and the governor's highway safety coordinator, or their designees, and the following members who are appointed by the governor to three-year terms:

1. One representative from each of the four local emergency medical services coordinating systems prescribed in section 36-2210.

2. One physician specializing in emergency medicine from each of the four local emergency medical services coordinating regions prescribed in section 36-2210.

1 3. One professional nurse who is licensed pursuant to title 32,
2 chapter 15 and who specializes in emergency medicine.
3 4. One emergency medical care technician.
4 5. Two representatives from ambulance service corporations [OR AIR
5 AMBULANCE SERVICE CORPORATIONS].
6 6. Two hospital administrators, one of whom represents a county
7 with a population of less than five hundred thousand persons.
8 7. One representative from each of the three employers of the
9 largest number of emergency medical care technicians and paramedics.
10 8. One representative from a nongovernmental employer of emergency
11 medical technicians I-99.
12 9. One representative from the state fire districts.
13 10. One physician who is licensed pursuant to title 32, chapter 13
14 or 17 and who specializes in trauma surgery.
15 11. One representative of a prehospital emergency medical training
16 program.
17 12. Six public members.
18 13. One representative of a volunteer medical rescue program.
19 B. Public members of the council are eligible to receive
20 compensation pursuant to section 38-611.
21 C. This section is repealed from and after January 1, 2028.>>
22 <<Sec. 8. Section 36-2204, Arizona Revised Statutes, is amended to
23 read:
24 36-2204. Medical control; standards and criteria
25 The medical director of the statewide emergency medical services and
26 trauma system, the emergency medical services council and the medical
27 direction commission shall recommend to the director [OF THE DEPARTMENT]
28 the following standards and criteria that pertain to the quality of
29 emergency patient care:
30 1. Statewide standardized training, certification and
31 recertification standards for all classifications of emergency medical
32 care technicians.
33 2. A standardized and validated testing procedure for all
34 classifications of emergency medical care technicians.
35 3. Medical standards for certification and recertification of
36 training programs for all classifications of emergency medical care
37 technicians.
38 4. Standardized continuing education criteria for all
39 classifications of emergency medical care technicians.
40 5. Medical standards for certification and recertification of
41 certified emergency receiving facilities and advanced life support base
42 hospitals and approval of physicians providing medical control or medical
43 direction for any classification of emergency medical care technicians who
44 are required to be under medical control or medical direction.
45 6. Standards and mechanisms for monitoring and ongoing evaluation
46 of performance levels of all classifications of emergency medical care
47 technicians, emergency receiving facilities and advanced life support base

1 hospitals and approval of physicians providing medical control or medical
2 direction for any classification of emergency medical care technicians who
3 are required to be under medical control or medical direction.

4 7. Objective criteria and mechanisms for decertification of all
5 classifications of emergency medical care technicians, emergency receiving
6 facilities and advanced life support base hospitals and for disapproval of
7 physicians providing medical control or medical direction for any
8 classification of emergency care technicians who are required to be under
9 medical control or medical direction.

10 8. Medical standards for nonphysician prehospital treatment and
11 prehospital triage of patients requiring emergency medical services.

12 9. Standards for emergency medical ~~[dispatcher]~~ [DISPATCH]
13 training, including prearrival instructions. For the purposes of this
14 paragraph, "emergency medical dispatch" means the receipt of calls
15 requesting emergency medical services and the response of appropriate
16 resources to the appropriate location.

17 10. Standards for a quality assurance process for components of the
18 statewide emergency medical services and trauma system, including
19 standards for maintaining the confidentiality of the information
20 considered in the course of quality assurance and the records of the
21 quality assurance activities pursuant to section 36-2403.

22 11. Standards for ambulance ~~[service]~~ [SERVICES, AIR AMBULANCE
23 SERVICES] and medical transportation that give consideration to the
24 differences between urban, rural and wilderness areas.

25 12. Standards to allow an ambulance to transport a patient to a
26 health care institution that is licensed as a special hospital and that is
27 physically connected to an emergency receiving facility.>>

28 Sec. 9. Section 36-2204.02, Arizona Revised Statutes, is amended to
29 read:

30 36-2204.02. Emergency medical services providers; ambulance
31 services; air ambulance services;
32 investigations of employees

33 A. In lieu of the requirements of section 36-2211, the director may
34 authorize an ambulance service, AIR AMBULANCE SERVICE or emergency medical
35 services provider to investigate, discipline or determine the fitness of
36 an employee to continue to provide patient care. This authority does not
37 apply to the conviction of, a plea of guilty or no contest to or admission
38 in a court proceeding to the elements of a felony. The employer listed on
39 the emergency medical care technician's, ~~or~~ ambulance attendant's OR AIR
40 AMBULANCE ATTENDANT'S certification or recertification application may
41 limit the practice of the emergency medical care technician, ~~or~~ ambulance
42 attendant OR AIR AMBULANCE ATTENDANT during the investigation if the
43 employer meets all of the following requirements:

44 1. Has separate investigative or supervisory staff to conduct an
45 investigation.

46 2. Has an employee assistance program for counseling.

1 3. Has policies and procedures for drug testing through urinalysis
2 or other generally accepted methods.

3 4. Has policies and procedures for monitoring ~~of~~ personnel who are
4 suspected of or who have been convicted of substance abuse.

5 B. An ambulance service, **AIR AMBULANCE SERVICE** or emergency medical
6 services provider that conducts its own disciplinary investigations
7 pursuant to subsection A of this section shall report the following to the
8 medical director of the emergency medical services and trauma system:

9 1. The nature of the allegation.

10 2. The level of patient care being delivered by the employee and
11 the supervision of the employee during the investigation or rehabilitative
12 period, or both.

13 3. The final outcome of the investigation and the final
14 recommendation on the employee's certification status.

15 C. The decisions of the employer **UNDER THIS SECTION** are appealable
16 under the employer's personnel policies and procedures. Except as
17 provided in section 41-1092.08, subsection H, the final administrative
18 decisions of the director are subject to judicial review pursuant to title
19 12, chapter 7, article 6.

20 Sec. 10. Section 36-2209, Arizona Revised Statutes, is amended to
21 read:

22 **36-2209. Powers and duties of the director**

23 A. The director shall:

24 1. Appoint and define the duties and prescribe the terms of
25 employment of all employees of the bureau.

26 2. Adopt rules necessary for the operation of the bureau and for
27 carrying out the purposes of this chapter.

28 3. Cooperate with and assist the personnel of emergency receiving
29 facilities and other health care institutions in preparing a plan to be
30 followed by ~~these~~ **EMERGENCY RECEIVING** facilities and **HEALTH CARE**
31 institutions in the event of a major disaster.

32 4. Cooperate with the state director of emergency management when a
33 state of emergency or a state of war emergency has been declared by the
34 governor.

35 B. The director may:

36 1. Request the cooperation of utilities, communications media and
37 public and private agencies to aid and assist in ~~the implementation~~
38 **IMPLEMENTING** and ~~maintenance of~~ **MAINTAINING** a statewide emergency medical
39 services system.

40 2. Enter into contracts and agreements with any local governmental
41 entity, agency, facility or group that provides a similar program of
42 emergency medical services in a contiguous state.

43 3. Enter into contracts and agreements ~~for the acquisition~~ **TO**
44 **ACQUIRE** and purchase ~~of~~ any equipment, tools, supplies, materials and
45 services necessary ~~in the administration of~~ **TO ADMINISTER** this chapter.

46 4. Enter into contracts with emergency receiving facilities,
47 governmental entities, emergency rescue services, **AIR AMBULANCE SERVICES**

1 and ambulance services, and ~~the director may~~ establish emergency medical
2 services, including emergency receiving facilities, if necessary to ~~assure~~
3 ~~ENSURE~~ the availability and quality of ~~these~~ EMERGENCY MEDICAL services.

4 5. Accept and ~~expend~~ SPEND federal funds and private grants, gifts,
5 contributions and devises to assist in carrying out the purposes of this
6 chapter. These funds do not revert to the state general fund at the close
7 of a fiscal year.

8 6. Establish an emergency medical services notification system that
9 uses existing telephone communications networks.

10 7. Contract with private telephone companies ~~for the establishment~~
11 ~~of~~ TO ESTABLISH a statewide emergency reporting telephone number.

12 8. Authorize the testing entity to collect fees determined by the
13 director. In determining fees for testing entities, the director shall
14 consider the fees required by national certification organizations.

15 Sec. 11. Section 36-2212, Arizona Revised Statutes, as amended by
16 Laws 2025, chapter 212, section 1, is amended to read:

17 36-2212. Certificate of registration to operate an ambulance
18 or air ambulance; termination on change in
19 ownership; fees

20 A. A person shall not operate an ambulance OR AIR AMBULANCE in this
21 state unless the ambulance OR AIR AMBULANCE has a certificate of
22 registration and complies with this article and the rules, standards and
23 criteria adopted pursuant to this article.

24 B. A person may obtain a certificate of registration to operate an
25 ambulance OR AIR AMBULANCE by submitting an application on a form
26 prescribed by the director and by demonstrating to the director's
27 satisfaction that the applicant is in compliance with this article and all
28 rules, standards and criteria adopted by the director for the operation of
29 an ambulance OR AIR AMBULANCE.

30 C. A certificate of registration issued under this section
31 terminates on any change of ownership or control of the ambulance OR AIR
32 AMBULANCE. Following any change of ownership, the new owner of an
33 ambulance OR AIR AMBULANCE shall apply for and receive a new certificate
34 of registration from the director before the ambulance OR AIR AMBULANCE
35 may again be operated in this state. This subsection does not apply if an
36 ambulance service OR AIR AMBULANCE SERVICE borrows, leases, rents or
37 otherwise obtains a registered ambulance OR AIR AMBULANCE from another
38 ambulance service OR AIR AMBULANCE SERVICE to temporarily replace an
39 inoperable ambulance OR AIR AMBULANCE.

40 D. The department shall issue a certificate of registration to a
41 person that complies with the requirements of this article and that pays
42 an initial registration fee. A certificate of registration is valid for
43 one year but an ambulance service OR AIR AMBULANCE SERVICE may request
44 that the department issue an initial certificate of registration that
45 expires before the end of one year in order for the department to conduct
46 an annual inspection of all of the ambulance service's ambulances OR AIR
47 AMBULANCE SERVICE'S AIR AMBULANCES at one time. A person may renew a

1 certificate of registration by complying with the requirements of this
2 article and by paying a renewal fee prescribed by the director. The fee
3 for initial registration and registration renewal shall not exceed \$50 for
4 each ambulance **OR AIR AMBULANCE**. The department shall base these fees on
5 an amount that approximates the per vehicle costs incurred by the
6 department to administer this chapter. The director shall deposit,
7 pursuant to sections 35-146 and 35-147, fees collected under this
8 subsection in the state general fund. The department shall not charge a
9 registration fee for an ambulance to an ambulance service that operates an
10 ambulance or ambulances, **OR A REGISTRATION FEE FOR AN AIR AMBULANCE TO AN**
11 **AIR AMBULANCE SERVICE THAT OPERATES AN AIR AMBULANCE OR AIR AMBULANCES,**
12 only as a volunteer not-for-profit service.

13 ~~E. Notwithstanding the period of time for which a certificate of~~
14 ~~registration is valid pursuant to subsection D of this section, if the~~
15 ~~certificate of registration holder timely submits a complete renewal~~
16 ~~application in compliance with this article and the rules adopted pursuant~~
17 ~~to this article and the department is unable to perform an inspection of~~
18 ~~an ambulance within the time frame prescribed by section 36-2232,~~
19 ~~subsection A, paragraph 13, the department may allow an ambulance's~~
20 ~~registration to remain valid and in effect until the department completes~~
21 ~~the required inspection.~~

22 Sec. 12. Repeal

23 Section 36-2212, Arizona Revised Statutes, as amended by Laws 2025,
24 chapter 212, section 2, is repealed.

25 Sec. 13. Section 36-2213, Arizona Revised Statutes, is amended to
26 read:

27 **36-2213. Air ambulance services; rules**

28 The director shall adopt rules to establish minimum standards for
29 the operation of air ambulance services that are necessary to ~~assure~~
30 **ENSURE** the public health and safety. The director may use the current
31 standards adopted by the commission on accreditation of air medical
32 services. Each rule shall reference the specific authority from this
33 chapter under which the rule was formulated. The rules shall provide for
34 the department to do the following:

35 1. Establish standards and requirements relating to at least the
36 following:

37 (a) Medical control plans. These plans shall conform to the
38 standards adopted pursuant to section 36-2204, paragraph 9.

39 (b) Qualifications of the medical director of the air ambulance
40 services.

41 (c) Operation of only those air ambulances registered pursuant to
42 section 36-2212 and licensed pursuant to title 28, chapter 25.

43 ~~2. Establish response times and operation times to assure that the~~
44 ~~health and safety needs of the public are met.~~

1 ~~3.~~ 2. Establish standards for emergency medical dispatch training,
2 including prearrival instruction. For the purposes of this paragraph,
3 "emergency medical dispatch" means the receipt of calls requesting
4 emergency medical services and the response of appropriate resources to
5 the appropriate location.

6 ~~4.~~ 3. Require the filing of run log information.

7 ~~5.~~ 4. Issue, transfer, suspend or revoke air ambulance service
8 licenses under terms and conditions consistent with this chapter. These
9 rules shall be consistent for all AIR ambulance services.

10 ~~6.~~ 5. Investigate the operation of an air ambulance service,
11 including a person operating an AIR ambulance that has not been issued a
12 certificate of registration, and conduct on-site investigations of
13 facilities communications equipment, vehicles, procedures, materials and
14 equipment.

15 ~~7.~~ 6. Prescribe the terms of the air ambulance service license.

16 ~~8.~~ 7. Prescribe the criteria for the air ambulance service license
17 inspection process and for determining an air ambulance service's
18 compliance with licensure requirements. The director shall accept proof
19 that an air ambulance service is accredited by the commission on
20 accreditation of air medical services in lieu of all licensing inspections
21 required if the director receives a copy of the air ambulance service's
22 accreditation report.

23 Sec. 14. Section 36-2215, Arizona Revised Statutes, is amended to
24 read:

25 36-2215. Required insurance or financial responsibility;
26 denial or revocation for failure to comply

27 A. The director shall not issue an air ambulance service license to
28 an AIR ambulance service unless the applicant for the license or the
29 licensee files with the department a certificate of insurance completed by
30 an insurance company that is authorized to transact business in this state
31 or other evidence of financial responsibility in an amount that the
32 director by rule determines is necessary to adequately protect the
33 interest of the public. The applicant for a license or the licensee shall
34 have malpractice and liability insurance that requires the insurer to
35 compensate for injuries to persons and for loss or damage to property
36 resulting from the negligent operation of the air ambulance service.

37 B. The director shall deny the application for a license or revoke
38 the license of any air ambulance service that fails to comply with this
39 section.

1 <<Sec. 15. Section 36-2216, Arizona Revised Statutes, is amended to
2 read:

3 36-2216. Prohibited acts: classification

4 A. It is unlawful for any person to operate an ambulance [OR AIR
5 AMBULANCE] in this state [which] [THAT] does not comply with [the
6 provisions of] this article or the rules adopted by the director under
7 this article.

8 B. A person who violates subsection A [OF THIS SECTION] is guilty
9 of a class 1 misdemeanor.>>

10 <<Sec. 16. Section 36-2217, Arizona Revised Statutes, is amended to
11 read:

12 36-2217. Exemption from regulation

13 A. This chapter does not apply to:

14 1. Vehicles used for the emergency transportation of persons
15 injured at an industrial site.

16 2. Persons engaged in and vehicles used for air transportation of
17 sick or injured people in a noncritical or nonemergency situation as
18 determined by a physician.

19 3. Medical evacuation equipment used and owned by the department of
20 public safety in air, ground or water evacuation and including fixed wing
21 aircraft, helicopters, ground ambulances and similar ground conveyances,
22 snowmobiles and water traversing equipment.

23 4. Vehicles provided or contracted for emergency medical services
24 by a political subdivision if these vehicles are primarily used to provide
25 on the scene stabilization of sick, injured, wounded, incapacitated or
26 helpless persons.

27 5. Ambulances [AND AIR AMBULANCES] from other states that are:

28 (a) Responding to a major catastrophe or emergency in this state
29 because there are insufficient registered ambulances in this state to
30 respond in that situation.

31 (b) Operating either from a location outside of this state to
32 transport a patient to a location within this state or operating from a
33 location outside of this state and crossing through this state to
34 transport a patient to a location outside this state.

35 6. Stretcher vans that meet the requirements of section 36-2223.

36 B. Except as provided in subsection A, paragraph 5, subdivision (a)
37 of this section, an ambulance [OR AN AIR AMBULANCE] from another state
38 shall not pick up a patient in this state and transport that patient to
39 another location in this state unless that ambulance [OR AIR AMBULANCE] is
40 registered under this chapter.>>

1 Sec. 17. Section 36-2226.02, Arizona Revised Statutes, is amended
2 to read:

3 36-2226.02. Administration of epinephrine; first responders;
4 immunity; definitions

5 A. A first responder who is trained in administering epinephrine
6 injections may administer an epinephrine injection or epinephrine delivery
7 system to a person who the first responder believes in good faith is
8 experiencing anaphylaxis pursuant to a standing order issued by any of the
9 following:

10 1. A physician ~~licensed pursuant to title 32, chapter 13 or 17.~~

11 2. A naturopathic physician licensed pursuant to title 32,
12 chapter 14.

13 3. A physician assistant licensed pursuant to title 32, chapter 25.

14 4. A nurse practitioner licensed pursuant to title 32, chapter 15
15 who is authorized by law to prescribe drugs.

16 B. The following individuals are immune from professional liability
17 and criminal prosecution for any decision made, act or omission or injury
18 that results from ~~that~~ AN act **PRESCRIBED IN SUBSECTION A OF THIS SECTION**
19 if the person acts with reasonable care and in good faith, except in cases
20 of wanton or wilful neglect:

21 1. Physicians who ~~are licensed pursuant to title 32, chapter 13 or~~
22 ~~17 and who~~ issue a standing order.

23 2. Naturopathic physicians who are licensed pursuant to title 32,
24 chapter 14 and who issue a standing order.

25 3. Physician assistants who are licensed pursuant to title 32,
26 chapter 25 and who issue a standing order.

27 4. Nurse practitioners who are licensed pursuant to title 32,
28 chapter 15 and authorized by law to prescribe drugs and who issue a
29 standing order.

30 5. First responders who administer epinephrine injections or
31 epinephrine delivery systems pursuant to this section.

32 C. This section does not create a duty to act or standard of care
33 for a first responder to administer an epinephrine injection or
34 epinephrine delivery system.

35 D. For the purposes of this section:

36 1. "Ambulance attendant" means ~~either~~ **ANY** of the following:

37 (a) An emergency medical technician, an advanced emergency medical
38 technician, an emergency medical technician I-99 or a paramedic whose
39 primary responsibility is ~~the care of~~ **CARING FOR** patients in an ambulance
40 and who meets the standards and criteria adopted pursuant to section
41 36-2204.

42 (b) An emergency medical responder who is employed by an ambulance
43 service operating under section 36-2202 and whose primary responsibility
44 is ~~the~~ driving ~~of~~ an ambulance.

45 (c) **AN AIR AMBULANCE ATTENDANT.**

46 2. "First responder" means a law enforcement officer, a firefighter
47 or an ambulance attendant.

1 Sec. 18. Section 36-2230, Arizona Revised Statutes, is amended to
2 read:

3 36-2230. Ambulance services; police dogs; authorization;
4 policies and procedures; immunity; billing

5 A. Each ambulance service shall require its emergency medical care
6 technicians and ambulance attendants as defined in section 36-2201,
7 paragraph ~~6~~ 9, subdivision (b) to transport a police dog that is injured
8 in the line of duty, along with a police officer who is trained in dog
9 handling, if available, or other police personnel who are medically
10 trained, by a ground ambulance or another emergency medical services
11 vehicle to a veterinary clinic or veterinary hospital equipped to provide
12 emergency treatment to dogs, if all of the following apply:

13 1. A person is not requiring emergency medical treatment or
14 transport by the ground ambulance or other emergency medical services
15 vehicle at that time.

16 2. The transport is not expected to take more than thirty minutes
17 from the point of pickup to the veterinary clinic or veterinary hospital.

18 3. The ambulance service has at least one additional ground
19 ambulance in service and available to respond to emergency calls.

20 4. The transport by a police officer in the police officer's
21 emergency vehicle is not deemed to be more safe and more expeditious than
22 transport by a ground ambulance.

23 B. An ambulance service may authorize its emergency medical care
24 technicians, if trained, to provide emergency treatment to a police dog
25 that is injured in the line of duty.

26 C. Each ambulance service may develop written policies and
27 procedures for all of the following:

28 1. Appropriate training of the ambulance service's emergency
29 medical care technician personnel to provide police dogs with basic level
30 first aid, cardiopulmonary resuscitation and lifesaving interventions,
31 including administering naloxone, that are developed in consultation with
32 a veterinarian who is licensed in this state.

33 2. Safe handling procedures for injured police dogs, including the
34 use of a muzzle, and response coordination with a law enforcement agency
35 member who is trained in handling police dogs, that are developed in
36 consultation with a veterinarian who is licensed in this state and a law
37 enforcement police dog handler or trainer.

38 3. Identification of local veterinary facilities that will provide
39 emergency treatment of injured police dogs on short notice.

40 4. Proper and complete decontamination of stretchers, the patient
41 compartment and all contaminated medical equipment after a police dog has
42 been transported by a ground ambulance or other emergency medical services
43 vehicle.

44 5. Sterilization of the interior of a ground ambulance or other
45 emergency medical services vehicle, including complete sanitizing of all
46 allergens and disinfection to a standard safe for human transport before
47 the ground ambulance or other vehicle is returned to human service.

1 D. Emergency medical care technicians and any other personnel
2 certified under this chapter who in the performance of their duties and in
3 good faith render emergency first aid, cardiopulmonary resuscitation,
4 transportation or other emergency medical services to an injured police
5 dog pursuant to this section are not personally liable as a result of
6 rendering such aid or services.

7 E. An ambulance service that provides transport for an injured
8 police dog pursuant to this section may bill the governmental entity that
9 owns the police dog for the cost of the transport.

10 F. This section does not preclude a police officer who is trained
11 in dog handling of an injured police dog from choosing to transport the
12 injured police dog in the police officer's own emergency vehicle.

13 <<Sec. 19. Section 36-2232, Arizona Revised Statutes, is amended to
14 read:

15 36-2232. Director; powers and duties; regulation of ambulance
16 services and air ambulance services; inspections;
17 response time compliance; mileage rate calculation
18 factors

19 A. The director shall adopt rules to regulate the operation of
20 ambulances~~[.]~~ ~~[and]~~ ambulance services~~[.]~~ AIR AMBULANCES AND AIR AMBULANCE
21 SERVICES in this state. Each rule shall identify all sections and
22 subsections of this chapter under which the rule was formulated. The
23 rules shall provide for the department to do the following:

24 1. Consistent with the requirements of subsection H of this
25 section, determine, fix, alter and regulate just, reasonable and
26 sufficient rates and charges for the provision of ambulances, including
27 rates and charges for advanced life support service, basic life support
28 service, patient loaded mileage, standby waiting, subscription service
29 contracts and other contracts for services related to the provision of
30 ambulances. The director shall inform all ambulance services of the
31 procedures and methodology used to determine ambulance rates or charges.

32 2. Ensure ~~[THAT]~~ evidence-based quality patient care is the
33 priority for decision-making.

34 3. Regulate operating and response times of ambulances to meet the
35 needs of the public and to ensure adequate service. The rules adopted by
36 the director for certificated ambulance service response times shall
37 include uniform standards for urban, suburban, rural and wilderness
38 geographic areas within the certificate of necessity based on, at a
39 minimum, population density and geographic and medical considerations.
40 The calculation of response times shall begin when the public safety
41 answering point contacts an ambulance service for dispatch and conclude
42 when the ambulance service arrives at the dispatched location. On-scene
43 arrival times for response time measurement shall be documented by the
44 ambulance service using dispatch or global positioning system data, or a
45 combination of both, and kept on file. Response time data that is
46 compliant with the health insurance portability and accountability act of
47 1996 shall be filed annually with the department. When dispatch or global

1 positioning system connectivity is not available, the ambulance service
2 shall manually document on-scene arrival times for response time
3 measurement. The response time data shall be filed in a
4 department-approved format, and the department shall make the response
5 time data publicly available.

6 4. Review response times established pursuant to paragraph 3 of
7 this subsection with the ambulance service and update the response times
8 based on, at a minimum, population density and geographic and medical
9 considerations, and the financial impact on rates and charges, every six
10 years. One additional review each six-year period may be requested by a
11 city, town, fire district or fire authority whose jurisdictional
12 boundaries in whole or in part are within the service area of a
13 certificate of necessity or an existing certificate of necessity holder
14 within the service area of the certificate of necessity.

15 5. Determine, fix, alter and regulate bases of operation. The
16 director may issue a certificate of necessity to more than one ambulance
17 service within any base of operation. For the purposes of this paragraph,
18 "base of operation" means a service area granted under a certificate of
19 necessity.

20 6. Issue, amend, transfer, suspend or revoke certificates of
21 necessity under terms consistent with this article.

22 7. Prescribe a uniform system of accounts to be used by ambulance
23 services that conforms to standard accounting forms and principles for the
24 ambulance industry and generally accepted accounting principles.

25 8. Require the filing of an annual financial report and other data.
26 These rules shall require an ambulance service to file the report with the
27 department not later than one hundred eighty days after the completion of
28 its annual accounting period.

29 9. Regulate ambulance services in all matters affecting services to
30 the public to the end that this article may be fully carried out.

31 10. Prescribe bonding requirements, if any, for ambulance services
32 [AND AIR AMBULANCE SERVICES THAT ARE] granted authority to provide any
33 type of subscription service.

34 11. Offer technical assistance to ambulance services [AND AIR
35 AMBULANCE SERVICES] to ensure compliance with the rules.

36 12. Offer technical assistance to ambulance services in order to
37 obtain or to amend a certificate of necessity.

38 13. Inspect, at a maximum of twelve-month intervals, each ambulance
39 [AND AIR AMBULANCE] registered pursuant to section 36-2212 to ensure that
40 the vehicle is operational and safe and that all required medical
41 equipment is operational. At the request of the provider, the inspection
42 may be performed by a facility approved by the director. If a provider
43 requests that the inspection be performed by a facility approved by the
44 director, the provider shall pay the cost of the inspection.

45 B. The director may require any ambulance service [OR AIR AMBULANCE
46 SERVICE] offering subscription service contracts to obtain a bond in an
47 amount determined by the director that is based on the number of

1 subscription service contract holders and to file the bond with the
2 director to protect all subscription service contract holders in this
3 state ~~[who]~~ [THAT] are covered under that subscription contract.

4 C. ~~[An]~~ [EACH] ambulance service shall:

5 1. Maintain, establish, add, move or delete suboperation stations
6 within its base of operation to ensure that the ambulance service meets
7 the established response times or those approved by the director in a
8 political subdivision contract.

9 2. Determine the operating hours of its suboperation stations to
10 provide for coverage of its base of operation.

11 3. Provide the department with a list of suboperation station
12 locations.

13 4. Notify the department not later than thirty days after the
14 ambulance service makes a change in the number or location of its
15 suboperation stations.

16 5. ~~[Beginning January 1, 2024,]~~ Install and maintain an electronic
17 global positioning system monitoring device in each vehicle that is used
18 for transport to record on-scene arrival times for response time
19 measurement. The department shall provide a waiver on a
20 department-approved form to an ambulance service that can reasonably
21 demonstrate it is unable to meet the requirements of this paragraph.

22 D. At any time, the director or the director's agents may:

23 1. Inquire into the operation of an ambulance service [OR AIR
24 AMBULANCE SERVICE], including a person operating an ambulance [OR AIR
25 AMBULANCE] that has not been issued a certificate of registration or a
26 person ~~[who]~~ [OPERATING AN AMBULANCE THAT] does not have or is operating
27 outside of a certificate of necessity.

28 2. Conduct on-site inspections of facilities, communications
29 equipment, vehicles, procedures, materials and equipment.

30 3. Review the qualifications of ambulance attendants [AND AIR
31 AMBULANCE ATTENDANTS].

32 E. If all ambulance services that have been granted authority to
33 operate within the same service area or that have overlapping certificates
34 of necessity apply for uniform rates and charges, the director may
35 establish uniform rates and charges for the service area.

36 F. In consultation with the medical director of the [BUREAU OF]
37 emergency medical services and trauma system, the emergency medical
38 services council and the medical direction commission, the director of the
39 department of health services shall establish protocols for ambulance
40 services to refer and advise a patient or transport a patient by the most
41 appropriate means to the most appropriate provider of medical services
42 based on the patient's condition. The protocols shall include triage and
43 treatment protocols that allow all classifications of emergency medical
44 care technicians responding to a person who has accessed 911, or a similar
45 public dispatch number, for a condition that does not pose an immediate
46 threat to life or limb to refer and advise a patient or transport a
47 patient to the most appropriate health care institution as defined in

1 section 36-401 based on the patient's condition, taking into consideration
2 factors including patient choice, the patient's health care provider,
3 specialized health care facilities and local protocols.

4 G. The director, when reviewing an ambulance service's response
5 time compliance with its certificate of necessity, shall consider in
6 addition to other factors the effect of hospital diversion, delayed
7 emergency department admission and the number of ambulances engaged in
8 response or transport in the affected area.

9 H. The department shall incorporate all of the following factors
10 when calculating the proposed mileage rate:

11 1. The cost of licensure and registration of each ground ambulance
12 vehicle.

13 2. The cost of fuel.

14 3. The cost of ground ambulance vehicle maintenance.

15 4. The cost of ground ambulance vehicle repair.

16 5. The cost of tires.

17 6. The cost of ground ambulance vehicle insurance.

18 7. The cost of mechanic wages, benefits and payroll taxes.

19 8. The cost of loan interest related to the ground ambulance
20 vehicles.

21 9. The cost of the weighted allocation of overhead.

22 10. The cost of ground ambulance vehicle depreciation.

23 11. The cost of reserves for replacement of ground ambulance
24 vehicles and equipment.>>

25 Sec. 20. Section 36-2239, Arizona Revised Statutes, is amended to
26 read:

27 36-2239. Ambulance services; rates; charges; adjustment;
28 civil penalty

29 A. An ambulance service that applies to adjust its rates or charges
30 shall automatically be granted a rate increase equal to the amount
31 determined under section 36-2234, subsection G, if the ambulance service
32 is so entitled. An automatic rate adjustment that is granted pursuant to
33 this subsection and that is filed on or before April 1 is effective June 1
34 of that year. The department shall notify the applicant and each health
35 care services organization as defined in section 20-1051 of the rate
36 adjustment on or before May 1 of that year.

37 B. Notwithstanding subsection E of this section, if the department
38 does not hold a hearing within ninety days after an ambulance service
39 applies to the department to adjust its rates or charges, the ambulance
40 service may adjust its rates or charges to an amount not to exceed the
41 amount sought by the ambulance service in its application to the
42 department. An ambulance service shall not apply to adjust its rates or
43 charges more than once every six months.

44 C. At the time the department holds a hearing on the rates or
45 charges of an ambulance service pursuant to section 36-2234, the
46 department may adjust the rates or charges adjusted by the ambulance

1 service pursuant to subsection B of this section, but the adjustment shall
2 not be retroactive.

3 D. Except as provided in subsection H of this section, an ambulance
4 service shall not charge, demand or collect any remuneration for any
5 service greater or less than or different from the rate or charge
6 determined and fixed by the department as the rate or charge for that
7 service. An ambulance service may charge for disposable supplies, medical
8 supplies and medication and oxygen related costs if the charges do not
9 exceed the manufacturer's suggested retail price, are uniform throughout
10 the ambulance service's certificated area and are filed with the director.
11 An ambulance service shall not refund or limit in any manner or by any
12 device any portion of the rates or charges for a service that the
13 department has determined and fixed or ordered as the rate or charge for
14 that service.

15 E. The department shall determine and render its decision regarding
16 all rates or charges within ninety days after commencement of the
17 applicant's hearing to adjust rates or charges. If the department does
18 not render its decision as required by this subsection, the ambulance
19 service may adjust its rates and charges to an amount that does not exceed
20 the amounts sought by the ambulance service in its application to the
21 department. If the department renders a decision to adjust the rates or
22 charges to an amount less than that requested in the application and the
23 ambulance service has adjusted its rates and charges higher than the
24 adjustment approved by the department, within thirty days after the
25 department's decision the ambulance service shall refund to the
26 appropriate ratepayer the difference between the ambulance service's
27 adjusted rates and charges and the rates and charges ordered by the
28 department. The ambulance service shall provide evidence to the
29 department that the refund has been made. If the ambulance service fails
30 to comply with this subsection, the director may impose a civil penalty
31 subject to the limits provided in section 36-2245.

32 F. An ambulance service shall charge the advanced life support base
33 rate as prescribed by the director under any of the following
34 circumstances:

35 1. A person requests an ambulance by dialing telephone number 911,
36 or a similarly designated telephone number for emergency calls, and all of
37 the following apply:

38 (a) The ambulance is staffed with at least one ambulance attendant.

39 (b) The ambulance is equipped with all required advanced life
40 support medical equipment and supplies for the advanced life support
41 attendants in the ambulance.

42 (c) The patient receives advanced life support services or is
43 transported by the advanced life support unit.

44 2. Advanced life support is requested by a medical authority or by
45 the patient.

1 3. The ambulance attendants administer one or more specialized
2 treatment activities or procedures as prescribed by the department by
3 rule.

4 G. An ambulance service shall charge the basic life support base
5 rate as prescribed by the director under any of the following
6 circumstances:

7 1. A person requests an ambulance by dialing telephone number 911,
8 or a similarly designated telephone number for emergency calls, and all of
9 the following apply:

10 (a) The ambulance is staffed with two ambulance attendants
11 certified by this state.

12 (b) The ambulance is equipped with all required basic life support
13 medical equipment and supplies for the basic life support medical
14 attendants in the ambulance.

15 (c) The patient receives basic life support services or is
16 transported by the basic life support unit.

17 2. Basic life support transportation or service is requested by a
18 medical authority or by the patient, unless any provision of subsection F
19 of this section applies, in which case the advanced life support rate
20 applies.

21 3. For an interfacility transport when the ambulance is staffed
22 with at least one ambulance attendant as defined in section 36-2201,
23 paragraph ~~6~~ 9, subdivision (a), (c), (d) or (e).

24 H. For each contract year, the Arizona health care cost containment
25 system administration and its contractors and subcontractors shall provide
26 remuneration for ambulance services for persons who are enrolled in or
27 covered by the Arizona health care cost containment system in an amount
28 equal to 68.59 percent of the amounts as prescribed by the department as
29 of July 1 of each year for services specified in subsections F and G of
30 this section and 68.59 percent of the mileage charges as determined by the
31 department as of July 1 of each year pursuant to section 36-2232. The
32 Arizona health care cost containment system administration shall annually
33 adjust the Arizona health care cost containment system fee schedule
34 according to the department's approved ambulance service rate in effect as
35 of July 1 of each year. The rate adjustments made pursuant to this
36 subsection are effective beginning October 1 of each year.

37 I. In establishing rates and charges, the director shall consider
38 the following factors:

39 1. The transportation needs assessment of the medical response
40 system in a political subdivision.

41 2. The medical care consumer price index of the United States
42 department of labor, bureau of labor statistics.

43 3. Whether a review is made by a local emergency medical services
44 coordinating system in regions where that system is designated as to the
45 appropriateness of the proposed service level.

46 4. The rate of return on gross revenue.

1 5. Response times pursuant to section 36-2232, subsection A,
2 paragraphs 3 and 4.

3 J. Notwithstanding section 36-2234, an ambulance service may charge
4 an amount for medical assessment, equipment or treatment that exceeds the
5 requirements of section 36-2205 if requested or required by a medical
6 provider or patient.

7 K. Notwithstanding subsections D, F and G of this section, an
8 ambulance service may provide gratuitous services if an ambulance is
9 dispatched and the patient subsequently declines to be treated or
10 transported.

11 Sec. 21. Section 36-2245, Arizona Revised Statutes, is amended to
12 read:

13 36-2245. Investigations; complaints; informal interviews;
14 hearings; stipulations; judicial review; civil
15 penalty; confidentiality; applicability

16 A. The department may conduct an investigation into the operation
17 of ambulances and ambulance services.

18 B. Proceedings under this section may be initiated by the
19 department.

20 C. If the department receives a written and signed statement of
21 dissatisfaction or dispute of charges or any matter relating to the
22 regulation of ambulance services, the customer is deemed to have filed an
23 informal complaint against the ambulance service. Within fifteen days ~~of~~
24 ~~receipt of~~ AFTER RECEIVING the complaint, a designated representative of
25 the department shall inform the ambulance service that an informal
26 complaint has been filed, state the nature of the allegations made,
27 specify the purported rule violation and identify specific records
28 relating to the purported rule violation that the ambulance service shall
29 provide to the department. The ambulance service shall comply with the
30 request for records in a timely manner.

31 D. Within forty-five days ~~of receipt of~~ AFTER RECEIVING the
32 records, the department shall determine ~~if~~ WHETHER the complaint is
33 nonsubstantive or substantive.

34 E. If the department determines that a complaint filed pursuant to
35 this section is nonsubstantive, ~~it~~ THE DEPARTMENT shall render a written
36 decision to all parties within five days ~~of~~ AFTER that determination. The
37 complainant may make a formal complaint to the department if the
38 complainant disagrees with the department's decision. If the
39 nonsubstantive complaint involves rates and charges, a designated
40 representative of the department shall attempt to resolve the dispute by
41 correspondence or telephone with the ambulance service and the customer.

1 F. If the department determines that a complaint filed pursuant to
2 this section is substantive, the complaint becomes a formal complaint.
3 The department shall inform the ambulance service that the initial
4 investigation was substantive in nature and may warrant action pursuant to
5 this article. The department shall inform the ambulance service of the
6 specific rule violation and shall allow the ambulance service thirty days
7 to answer the complaint in writing.

8 G. The department may issue a written request for an informal
9 interview with the ambulance service if the department believes that the
10 evidence indicates that grounds for action exist. The request shall state
11 the reasons for the INFORMAL interview and shall schedule an interview at
12 least ten days ~~from~~ AFTER the date that the department sends the request
13 for an interview.

14 H. If the department determines that evidence warrants action or if
15 the ambulance service refuses to attend the informal interview, the
16 director shall institute formal proceedings and hold a hearing pursuant to
17 title 41, chapter 6, article 10.

18 I. If the department believes that a lesser disciplinary action is
19 appropriate, the department may enter into a stipulated agreement with the
20 ambulance service. This stipulation may include a civil penalty as
21 provided under subsection J of this section.

22 J. In addition to other disciplinary action provided under this
23 section, the director may impose a civil penalty of not more than ~~three~~
24 ~~hundred fifty dollars~~ \$350 for each violation of this chapter that
25 constitutes grounds to suspend or revoke a certificate of necessity. This
26 penalty shall not exceed ~~fifteen thousand dollars~~ \$15,000. Each day that
27 a violation occurs constitutes a separate offense. The director shall
28 deposit, pursuant to sections 35-146 and 35-147, all monies collected
29 under this subsection in the emergency medical services operating fund
30 established ~~under~~ BY section 36-2218.

31 K. The director may suspend a certificate of necessity without
32 holding a hearing if the director determines that the certificate holder
33 has failed to pay a civil penalty imposed under this section. The director
34 shall reinstate the certificate of necessity when the certificate holder
35 pays the penalty in full.

36 L. Except as provided in section 41-1092.08, subsection H, a final
37 decision of the department pursuant to this section is subject to judicial
38 review pursuant to title 12, chapter 7, article 6.

39 M. Information, documents and records received by the department or
40 prepared by the department in connection with an investigation that is
41 conducted pursuant to this article and that relates to emergency medical
42 care technicians are confidential and are not subject to public inspection
43 or civil discovery. When the investigation has been completed and the
44 investigation file has been closed, the results of the investigation and
45 the decision of the department shall be available to the public.

46 N. THIS SECTION APPLIES TO AIR AMBULANCES AND AIR AMBULANCE
47 SERVICES TO THE EXTENT THAT:

1 1. THE COMPLAINT OR PROCEEDINGS INITIATED BY THE DEPARTMENT RELATE
2 TO THE EMERGENCY MEDICAL SERVICES PROVIDED BY THE AIR AMBULANCE OR AIR
3 AMBULANCE SERVICE.

4 2. THE INVESTIGATION DOES NOT CONFLICT WITH ANY FEDERAL LAW OR
5 REGULATION GOVERNING AIR CARRIERS.

6 Sec. 22. Section 36-2264, Arizona Revised Statutes, is amended to
7 read:

8 36-2264. Exemption from regulation

9 A. A person who obtains an automated external defibrillator for
10 home use pursuant to a physician's prescription is exempt from the
11 requirements of this article.

12 B. A person who is employed as a firefighter, emergency medical
13 care technician, AIR AMBULANCE ATTENDANT or ambulance attendant by a fire
14 district established pursuant to title 48, chapter 5 is exempt from the
15 requirements of this article.

16 C. A person who is employed as a firefighter, emergency medical
17 care technician, AIR AMBULANCE ATTENDANT or ambulance attendant by a
18 public or private fire department, AIR AMBULANCE SERVICE or ~~an~~ ambulance
19 service regulated by this chapter is exempt from the requirements of this
20 article.

21 Sec. 23. Section 36-2907, Arizona Revised Statutes, is amended to
22 read:

23 36-2907. Covered health and medical services; modifications;
24 related delivery of service requirements; rules;
25 definitions

26 A. Subject to the limits and exclusions specified in this section,
27 contractors shall provide the following medically necessary health and
28 medical services:

29 1. Inpatient hospital services that are ordinarily furnished by a
30 hospital to care for and treat inpatients and that are provided under the
31 direction of a physician or a primary care practitioner. For the purposes
32 of this section, inpatient hospital services exclude services in an
33 institution for tuberculosis or mental diseases unless authorized under an
34 approved section 1115 waiver.

35 2. Outpatient health services that are ordinarily provided in
36 hospitals, clinics, offices and other health care facilities by licensed
37 health care providers. Outpatient health services include services
38 provided by or under the direction of a physician or a primary care
39 practitioner, including occupational therapy.

40 3. Other laboratory and X-ray services ordered by a physician or a
41 primary care practitioner.

42 4. Medications that are ordered on prescription by a physician or a
43 dentist who is licensed pursuant to title 32, chapter 11. Persons who are
44 dually eligible for title XVIII and title XIX services must obtain
45 available medications through a medicare licensed or certified medicare
46 advantage prescription drug plan, a medicare prescription drug plan or any

1 other entity authorized by medicare to provide a medicare part D
2 prescription drug benefit.

3 5. Medical supplies, durable medical equipment, insulin pumps and
4 prosthetic devices ordered by a physician or a primary care practitioner.
5 Suppliers of durable medical equipment shall provide the administration
6 with complete information about the identity of each person who has an
7 ownership or controlling interest in their business and shall comply with
8 federal bonding requirements in a manner prescribed by the administration.

9 6. For persons who are at least twenty-one years of age, treatment
10 of medical conditions of the eye, excluding eye examinations for
11 prescriptive lenses and the provision of prescriptive lenses.

12 7. Early and periodic health screening and diagnostic services as
13 required by section 1905(r) of title XIX of the social security act for
14 members who are under twenty-one years of age.

15 8. Family planning services that do not include abortion or
16 abortion counseling. If a contractor elects not to provide family
17 planning services, this election does not disqualify the contractor from
18 delivering all other covered health and medical services under this
19 chapter. In that event, the administration may contract directly with
20 another contractor, including an outpatient surgical center or a
21 noncontracting provider, to deliver family planning services to a member
22 who is enrolled with the contractor that elects not to provide family
23 planning services.

24 9. Podiatry services that are performed by a podiatrist who is
25 licensed pursuant to title 32, chapter 7 and ordered by a primary care
26 physician or primary care practitioner.

27 10. Nonexperimental transplants approved for title XIX
28 reimbursement.

29 11. Dental services as follows:

30 (a) Except as provided in subdivision (b) of this paragraph, for
31 persons who are at least twenty-one years of age, emergency dental care
32 and extractions in an annual amount of not more than \$1,000 per member.

33 (b) Subject to approval by the centers for medicare and medicaid
34 services, for persons treated at an Indian health service or tribal
35 facility, adult dental services that are eligible for a federal medical
36 assistance percentage of one hundred percent and that exceed the limit
37 prescribed in subdivision (a) of this paragraph.

38 12. AIR AMBULANCE, ambulance and nonambulance transportation,
39 except as provided in subsection G of this section.

40 13. Hospice care.

41 14. Orthotics, if all of the following apply:

42 (a) The use of the orthotic is medically necessary as the preferred
43 treatment option consistent with medicare guidelines.

44 (b) The orthotic is less expensive than all other treatment options
45 or surgical procedures to treat the same diagnosed condition.

46 (c) The orthotic is ordered by a physician or primary care
47 practitioner.

1 15. Subject to approval by the centers for medicare and medicaid
2 services, medically necessary chiropractic services that are performed by
3 a chiropractor who is licensed pursuant to title 32, chapter 8 and that
4 are ordered by a primary care physician or primary care practitioner
5 pursuant to rules adopted by the administration. The primary care
6 physician or primary care practitioner may initially order up to twenty
7 visits annually that include treatment and may request authorization for
8 additional chiropractic services in that same year if additional
9 chiropractic services are medically necessary.

10 16. For up to ten program hours annually, diabetes outpatient
11 self-management training services, as defined in 42 United States Code
12 section 1395x, if prescribed by a primary care practitioner in either of
13 the following circumstances:

14 (a) The member is initially diagnosed with diabetes.

15 (b) For a member who has previously been diagnosed with diabetes,
16 either:

17 (i) A change occurs in the member's diagnosis, medical condition or
18 treatment regimen.

19 (ii) The member is not meeting appropriate clinical outcomes.

20 17. Pursuant to the terms and conditions that are approved by the
21 centers for medicare and medicaid services and subject to available
22 funding, traditional healing services, if both of the following apply:

23 (a) The member qualifies for services through the Indian health
24 service or a tribal facility pursuant to the conditions of participation
25 outlined in 42 Code of Federal Regulations section 136.12.

26 (b) The traditional healing service is delivered by or through the
27 Indian health service or a tribal facility.

28 B. The limits and exclusions for health and medical services
29 provided under this section are as follows:

30 1. Circumcision of newborn males is not a covered health and
31 medical service.

32 2. For eligible persons who are at least twenty-one years of age:

33 (a) Prosthetic devices do not include hearing aids, dentures or
34 bone-anchored hearing aids. Prosthetic devices, except prosthetic
35 implants, may be limited to \$12,500 per contract year.

36 (b) Percussive vests are not covered health and medical services.

37 (c) Durable medical equipment is limited to items covered by
38 medicare.

39 (d) Nonexperimental transplants do not include pancreas-only
40 transplants.

41 (e) Bariatric surgery procedures, including laparoscopic and open
42 gastric bypass and restrictive procedures, are not covered health and
43 medical services.

44 C. The system shall pay noncontracting providers only for health
45 and medical services as prescribed in subsection A of this section and as
46 prescribed by rule.

1 D. The director shall adopt rules necessary to limit, to the extent
2 possible, the scope, duration and amount of services, including maximum
3 limits for inpatient services that are consistent with federal regulations
4 under title XIX of the social security act (P.L. 89-97; 79 Stat. 344;
5 42 United States Code section 1396 (1980)). To the extent possible and
6 practicable, these rules shall provide for the prior approval of medically
7 necessary services provided pursuant to this chapter.

8 E. The director shall make available home health services in lieu
9 of hospitalization pursuant to contracts awarded under this article. For
10 the purposes of this subsection, "home health services" means the
11 provision of nursing services, home health aide services or medical
12 supplies, equipment and appliances that are provided on a part-time or
13 intermittent basis by a licensed home health agency within a member's
14 residence based on the orders of a physician or a primary care
15 practitioner. Home health agencies shall comply with the federal bonding
16 requirements in a manner prescribed by the administration.

17 F. The director shall adopt rules for the coverage of behavioral
18 health services for persons who are eligible under section 36-2901,
19 paragraph 6, subdivision (a). The administration acting through the
20 regional behavioral health authorities shall establish a diagnostic and
21 evaluation program to which other state agencies shall refer children who
22 are not already enrolled pursuant to this chapter and who may be in need
23 of behavioral health services. In addition to an evaluation, the
24 administration acting through regional behavioral health authorities shall
25 also identify children who may be eligible under section 36-2901,
26 paragraph 6, subdivision (a) or section 36-2931, paragraph 5 and shall
27 refer the children to the appropriate agency responsible for making the
28 final eligibility determination.

29 G. The director shall adopt rules providing for transportation
30 services and rules providing for copayment by members for transportation
31 for other than emergency purposes. Subject to approval by the centers for
32 medicare and medicaid services, nonemergency medical transportation shall
33 not be provided except for stretcher vans AND AIR AMBULANCE and ambulance
34 transportation. Prior authorization is required for transportation by
35 stretcher van and for medically necessary AIR AMBULANCE AND ambulance
36 transportation initiated pursuant to a physician's direction. Prior
37 authorization is not required for medically necessary AIR AMBULANCE AND
38 ambulance transportation services rendered to members or eligible persons
39 initiated by dialing telephone number 911 or other designated emergency
40 response systems.

41 H. The director may adopt rules to allow the administration, at the
42 director's discretion, to use a second opinion procedure under which
43 surgery may not be eligible for coverage pursuant to this chapter without
44 documentation as to need by at least two physicians or primary care
45 practitioners.

46 I. If the director does not receive bids within the amounts
47 budgeted or if at any time the amount remaining in the Arizona health care

1 cost containment system fund is insufficient to pay for full contract
2 services for the remainder of the contract term, the administration, on
3 notification to system contractors at least thirty days in advance, may
4 modify the list of services required under subsection A of this section
5 for persons defined as eligible other than those persons defined pursuant
6 to section 36-2901, paragraph 6, subdivision (a). The director may also
7 suspend services or may limit categories of expense for services defined
8 as optional pursuant to title XIX of the social security act (P.L. 89-97;
9 79 Stat. 344; 42 United States Code section 1396 (1980)) for persons
10 defined pursuant to section 36-2901, paragraph 6, subdivision (a). Such
11 reductions or suspensions do not apply to the continuity of care for
12 persons already receiving these services.

13 J. All health and medical services provided under this article
14 shall be provided in the geographic service area of the member, except:

15 1. Emergency services and specialty services provided pursuant to
16 section 36-2908.

17 2. That the director may allow the delivery of health and medical
18 services in other than the geographic service area in this state or in an
19 adjoining state if the director determines that medical practice patterns
20 justify the delivery of services or a net reduction in transportation
21 costs can reasonably be expected. Notwithstanding the definition of
22 physician as prescribed in section 36-2901, if services are procured from
23 a physician or primary care practitioner in an adjoining state, the
24 physician or primary care practitioner shall be licensed to practice in
25 that state pursuant to licensing statutes in that state that are similar
26 to title 32, chapter 13, 15, 17 or 25 and shall complete a provider
27 agreement for this state.

28 K. Covered outpatient services shall be subcontracted by a primary
29 care physician or primary care practitioner to other licensed health care
30 providers to the extent practicable for purposes including, but not
31 limited to, making health care services available to underserved areas,
32 reducing costs of providing medical care and reducing transportation
33 costs.

34 L. The director shall adopt rules that prescribe the coordination
35 of medical care for persons who are eligible for system services. The
36 rules shall include provisions for transferring patients and medical
37 records and initiating medical care.

38 M. Pursuant to the terms and conditions that are approved by the
39 centers for medicare and medicaid services and subject to available
40 funding, the director shall implement limited benefit coverage prerelease
41 services to eligible incarcerated individuals and committed youth for up
42 to ninety days immediately before ~~the individuals~~ EACH INDIVIDUAL'S or
43 committed youth's expected date of release from a prison, jail, secure
44 care facility or tribal correctional facility.

45 N. Notwithstanding section 36-2901.08, monies from the hospital
46 assessment fund established by section 36-2901.09 may not be used to
47 provide any of the following:

1 1. Chiropractic services as prescribed in subsection A, paragraph
2 15 of this section.

3 2. Diabetes outpatient self-management training services as
4 prescribed in subsection A, paragraph 16 of this section.

5 3. Speech therapy provided in an outpatient setting to eligible
6 persons who are at least twenty-one years of age.

7 4. Cochlear implants to eligible persons who are at least
8 twenty-one years of age.

9 0. For the purposes of this section:

10 1. "AIR AMBULANCE" HAS THE SAME MEANING PRESCRIBED IN SECTION
11 36-2201.

12 ~~1.~~ 2. "Ambulance" has the same meaning prescribed in section
13 36-2201.

14 ~~2.~~ 3. "Tribal facility" has the same meaning prescribed in section
15 36-2981.

16 Sec. 24. Section 36-2989, Arizona Revised Statutes, is amended to
17 read:

18 36-2989. Covered health and medical services; modifications;
19 related delivery of service requirements

20 A. Except as provided in this section, health and medical services
21 prescribed in section 36-2907 are covered services and include:

22 1. Inpatient hospital services that are ordinarily furnished by a
23 hospital for the care and treatment of inpatients, that are medically
24 necessary and that are provided under the direction of a physician or a
25 primary care practitioner. For the purposes of this paragraph, inpatient
26 hospital services exclude services in an institution for tuberculosis or
27 mental diseases unless authorized by federal law.

28 2. Outpatient health services that are medically necessary and
29 ordinarily provided in hospitals, clinics, offices and other health care
30 facilities by licensed health care providers. For the purposes of this
31 paragraph, "outpatient health services" includes services provided by or
32 under the direction of a physician or a primary care practitioner.

33 3. Other laboratory and X-ray services ordered by a physician or a
34 primary care practitioner.

35 4. Medications that are medically necessary and ordered on
36 prescription by a physician, a primary care practitioner or a dentist
37 licensed pursuant to title 32, chapter 11.

38 5. Medical supplies, equipment and prosthetic devices.

39 6. Treatment of medical conditions of the eye, including eye
40 examinations for prescriptive lenses and the provision of prescriptive
41 lenses for members.

42 7. Medically necessary dental services.

43 8. Well child services, immunizations and prevention services.

44 9. Family planning services that do not include abortion or
45 abortion counseling. If a contractor elects not to provide family
46 planning services, this election does not disqualify the contractor from
47 delivering all other covered health and medical services under this

1 article. In that event, the administration may contract directly with
2 another contractor, including an outpatient surgical center or a
3 noncontracting provider, to deliver family planning services to a member
4 who is enrolled with a contractor who elects not to provide family
5 planning services.

6 10. Podiatry services that are performed by a podiatrist licensed
7 pursuant to title 32, chapter 7 and that are ordered by a primary care
8 physician or primary care practitioner.

9 11. Medically necessary pancreas, heart, liver, kidney, cornea, lung
10 and heart-lung transplants and autologous and allogeneic bone marrow
11 transplants and immunosuppressant medications for these transplants
12 ordered on prescription by a physician licensed pursuant to title 32,
13 chapter 13 or 17.

14 12. Medically necessary emergency and nonemergency transportation.

15 13. Inpatient and outpatient behavioral health services that are the
16 same as the least restrictive health benefits coverage plan for behavioral
17 health services that are offered through a health care services
18 organization for state employees under section 38-651.

19 14. Hospice care.

20 B. The administration shall pay noncontracting providers only for
21 health and medical services as prescribed in subsection A of this section.

22 C. To the extent possible and practicable, the administration and
23 contractors shall provide for the prior approval of medically necessary
24 services provided pursuant to this article.

25 D. The director shall make available home health services in lieu
26 of hospitalization pursuant to contracts awarded under this article.

27 E. Behavioral health services shall be provided to members through
28 the administration's contractors. The administration acting through
29 regional behavioral health authorities as defined in section 36-3401 shall
30 use its established diagnostic and evaluation program for referrals of
31 children who are not already enrolled pursuant to this article and who may
32 be in need of behavioral health services. In addition to an evaluation,
33 the administration acting through regional behavioral health authorities
34 as defined in section 36-3401 shall also identify children who may be
35 eligible under section 36-2901, paragraph 6, subdivision (a) or section
36 36-2931, paragraph 5 and shall refer the children to the appropriate
37 agency responsible for making the final eligibility determination.

38 F. The director shall adopt rules for the provision of
39 transportation services for members. Prior authorization is not required
40 for medically necessary **AIR AMBULANCE AND** ambulance transportation
41 services rendered to members initiated by dialing telephone number 911 or
42 other designated emergency response systems.

43 G. The director may adopt rules to allow the administration to use
44 a second opinion procedure under which surgery may not be eligible for
45 coverage pursuant to this article without documentation as to need by at
46 least two physicians or primary care practitioners.

1 H. All health and medical services provided under this article
2 shall be provided in the geographic service area of the member, except:

3 1. Emergency services and specialty services.

4 2. The director may permit the delivery of health and medical
5 services in other than the geographic service area in this state or in an
6 adjoining state if it is determined that medical practice patterns justify
7 the delivery of services or a net reduction in transportation costs can
8 reasonably be expected. Notwithstanding section 36-2981, paragraph 8 or
9 11, if services are procured from a physician or primary care practitioner
10 in an adjoining state, the physician or primary care practitioner shall be
11 licensed to practice in that state pursuant to licensing statutes in that
12 state that are similar to title 32, chapter 13, 15, 17 or 25.

13 I. Covered outpatient services shall be subcontracted by a primary
14 care physician or primary care practitioner to other licensed health care
15 providers to the extent practicable for purposes of making health care
16 services available to underserved areas, reducing costs of providing
17 medical care and reducing transportation costs.

18 J. The director shall adopt rules that prescribe the coordination
19 of medical care for members and that include a mechanism to transfer
20 members and medical records and initiate medical care.

21 K. The director shall adopt rules for the reimbursement of
22 specialty services provided to the member if authorized by the member's
23 primary care physician or primary care practitioner.

24 L. Pursuant to the terms and conditions that are approved by the
25 centers for medicare and medicaid services and subject to available
26 funding, the director shall implement limited benefit coverage prerelease
27 services to eligible incarcerated individuals or committed youth for up to
28 ninety days immediately before ~~the individuals~~ EACH INDIVIDUAL'S or
29 committed youth's expected date of release from a prison, jail, secure
30 care facility or tribal correctional facility.

31 Sec. 25. Section 41-1831, Arizona Revised Statutes, is amended to
32 read:

33 41-1831. Definitions

34 In this chapter, unless the context otherwise requires:

35 1. "AIR AMBULANCE" MEANS ANY PUBLICLY OR PRIVATELY OWNED AIRCRAFT
36 THAT IS CERTIFICATED UNDER 14 CODE OF FEDERAL REGULATIONS PART 135, THAT
37 CONTAINS A STRETCHER AND NECESSARY MEDICAL EQUIPMENT AND SUPPLIES PURSUANT
38 TO SECTION 36-2202 AND THAT IS SPECIFICALLY DESIGNED AND CONSTRUCTED OR
39 MODIFIED AND EQUIPPED TO BE USED, MAINTAINED OR OPERATED PRIMARILY TO
40 TRANSPORT INDIVIDUALS WHO ARE SICK, INJURED OR WOUNDED OR WHO REQUIRE
41 MEDICAL MONITORING OR AID.

42 2. "AIR AMBULANCE SERVICE" MEANS A PERSON OR ORGANIZATION THAT OWNS
43 AND OPERATES ONE OR MORE AIR AMBULANCES OR THAT LEASES FROM AN AIR CARRIER
44 THE USE OF ONE OR MORE AIR AMBULANCES THAT ARE CERTIFICATED UNDER 14 CODE
45 OF FEDERAL REGULATIONS PART 135, FOR THE PURPOSE OF PROVIDING EMERGENCY
46 MEDICAL SERVICES IN AIR AMBULANCES.

1 ~~1.~~ 3. "Ambulance":
2 (a) Means any publicly or privately owned surface, ~~OR~~ water ~~or air~~
3 vehicle, ~~including a helicopter~~, that is ~~specially~~ SPECIFICALLY designed
4 and constructed or modified and equipped to be used, maintained or
5 operated for transportation of individuals who are sick, injured, wounded
6 or otherwise incapacitated or helpless. ~~Ambulance~~
7 (b) Does not include surface vehicles owned and operated by a
8 private sole proprietor, partnership, private corporation or municipal
9 corporation for the emergency transportation or in transit care of its
10 employees.
11 ~~2.~~ 4. "Ambulance pilot" means an individual who is responsible for
12 the operation of an air ambulance and who is trained and certified as
13 provided in this chapter.
14 ~~3.~~ 5. "Ambulance service" means a person who owns and operates one
15 or more ambulances.
16 ~~5.~~ 6. "Department" means the department of public safety.
17 ~~6.~~ 7. "Director" means the director of the department ~~of public~~
18 ~~safety~~.
19 ~~4.~~ 8. "Emergency medical care technician" means an individual who
20 has been certified by the department of health services as an emergency
21 medical technician, an advanced emergency medical technician, an emergency
22 medical technician I-99 or a paramedic.
23 ~~7.~~ 9. "Emergency medical patient" means a person who is suffering
24 from a condition that requires immediate medical care or hospitalization,
25 or both, in order to preserve the person's health, life or limb.
26 ~~8.~~ 10. "Emergency medical services communication system" means the
27 statewide system THAT IS implemented, coordinated and administered by the
28 department of public safety, ~~which~~ AND THAT may have the capability of
29 providing for the intercommunication of any or all law enforcement
30 agencies and personnel, ambulances, ambulance services AND AIR AMBULANCE
31 SERVICES and dispatchers, emergency receiving facilities, other health
32 care institutions, medical practitioners, motor vehicle repair, fire
33 service vehicles and tow trucks, and any other agencies and persons who
34 may be serving on a volunteer basis.
35 ~~9.~~ 11. "Emergency medical situation" means a condition of
36 emergency in which immediate medical care or hospitalization, or both, is
37 required by a person or persons for the preservation of health, life or
38 limb.
39 ~~10.~~ 12. "Emergency receiving facility" means a licensed health care
40 institution that offers emergency medical services, that is staffed
41 twenty-four hours a day and that has a physician who is licensed pursuant
42 to title 32, chapter 13 or 17, ~~on~~ call.

1 Sec. 26. Section 41-2407, Arizona Revised Statutes, is amended to
2 read:

3 41-2407. Victim compensation and assistance fund;
4 subrogation; prohibited debt collection activity;
5 definition

6 A. The victim compensation and assistance fund is established. The
7 Arizona criminal justice commission shall administer the fund. The victim
8 compensation and assistance fund shall consist of monies collected
9 pursuant to section 31-411, subsection E and sections 12-116.08, 13-4310,
10 31-418, 31-467.06 and 41-1674, unclaimed victim restitution monies
11 pursuant to sections 22-116 and 44-313 and monies available from any other
12 source.

13 B. Subject to legislative appropriation, the Arizona criminal
14 justice commission shall allocate monies in the victim compensation and
15 assistance fund to public and private agencies for the purpose of
16 establishing, maintaining and supporting programs that compensate and
17 assist victims of crime.

18 C. The allocation of monies pursuant to this section shall be made
19 in accordance with rules adopted by the Arizona criminal justice
20 commission pursuant to section 41-2405, subsection A, paragraph 8. The
21 rules shall provide that persons who suffered personal injury or death
22 that resulted from an attempt to aid a public safety officer in the
23 prevention of a crime or the apprehension of a criminal may be eligible
24 for compensation.

25 D. This state and the applicable operational unit or qualified
26 program, as defined in the victim compensation program rules, are
27 subrogated to the rights of an individual who receives monies from the
28 victim compensation and assistance fund to recover or receive monies or
29 benefits from a third party, to the extent of the amount of monies the
30 individual receives from the fund.

31 E. A licensed health care provider who agrees to the victim
32 compensation program rules may receive program monies for providing health
33 and medical services to a victim or claimant. A licensed health care
34 provider who accepts the full allowable payment for those services from a
35 victim compensation program funded pursuant to this section is deemed to
36 have accepted the payment as the full payment for those services. The
37 licensed health care provider may not collect or attempt to collect any
38 payment for the same health and medical services from the victim or
39 claimant, except that if a victim compensation program funded pursuant to
40 this section is unable to pay the full allowable payment to a licensed
41 health care provider because of a lack of available monies or for any
42 other reason, the licensed health care provider may collect the unpaid
43 balance for the services from the victim or claimant or from a third-party
44 payor, and the total amount billed or requested by the licensed health
45 care provider may not exceed the full allowable payment that the licensed
46 health care provider agreed to accept from the victim compensation program
47 for the services.

1 F. If a licensed health care provider receives notice that a person
2 has filed a claim with a victim compensation program funded by this
3 section, the licensed health care provider is prohibited from any debt
4 collection activity for any monies owed by the person that are included in
5 the filed claim until an award is made on the claim or until a
6 determination is made that the claim is noncompensable. For the purposes
7 of this subsection, "debt collection activity" includes repeatedly
8 telephoning or writing to the claimant and threatening to either turn the
9 matter over to a debt collection agency or to an attorney for collection,
10 enforcement or filing of any other debt collection process. Debt
11 collection activity does not include routine billing or inquiries about
12 the status of the claim.

13 G. For the purposes of this section, "licensed health care
14 provider" means a person or institution that is licensed or certified by
15 this state to provide health care services, medical services, nursing
16 services, emergency medical services, [AIR AMBULANCE SERVICES](#) and ambulance
17 services that are regulated pursuant to title 36, chapter 21.1, article 2
18 or other health-related services.

19 Enroll and engross to conform
20 Amend title to conform

JULIE WILLOUGHBY

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